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File No.: EXP202213615

Sanctioning Procedure No. PS/00074/2024

RESOLUTION OF SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on November 10, 2022. The complaint is directed against AYUNTAMIENTO DE TELDE with NIF P3502600D (hereinafter, the respondent/the City Council).

The complainant requests an analysis of the legality of the implementation of clocking in via facial recognition established as a method of controlling the workday for municipal employees of the City Council, reviewing whether a prior impact assessment has been conducted before processing biometric data and to be informed whether the respondent has fulfilled the obligation to appoint a data protection officer.

The reasons on which the complaint is based are as follows:

- On January 19, 2022, the complainant, an employee of the municipal police of the City Council of Telde, submitted a written request to the City Council's registry, in which he requested that: "He be recognized the right to clock in electronically via mobile with geolocation and consequently, the Human Resources Department provide the applicant with the necessary technical means to clock in through this procedure as it is proportional to the intended purpose, since it is less invasive regarding the fundamental right to data protection than the alternative facial recognition procedure; and under equal conditions as other municipal employees."

The complainant states that this request is based on the Circular of January 10, 2021, issued by the Department of Economy and Human Resources of the City Council, and the subsequent Regulation of the Full City Council, which established three possible ways of clocking in for the workday: clocking in via facial recognition, clocking in through the web, and clocking in via mobile with geolocation.

He also indicates that this request was initially made by email to the Human Resources Department, which was denied on January 11, 2021, as this type of clocking in was reserved for specific services, indicating that in his case he should clock in using the facial recognition system at the terminal located in the municipal police facilities.

- The request made on January 10, 2021, was denied by the City Council by resolution dated January 26, 2022, on the grounds that the clocking in system was not the employee's choice but part of the organizational authority of the City Council, which was appealed by the complainant through a request for reconsideration, which was dismissed for the same reason on April 28, 2022.

- On May 4, 2022, the complainant requested the City Council to assign a place, date, and time for the collection of biometric data. He included a request for the data protection officer (hereinafter, DPO) to supervise compliance with data protection regulations and determine: whether a prior impact assessment has been conducted before processing biometric data, to comment on the obligation to carry out clocking in via facial recognition instead of other less invasive methods, and to ensure that at the time of collecting biometric data, all requirements established by current regulations on personal data protection are duly complied with, especially that the information provided for in Article 13 and Articles 3 and 11 of the General Data Protection Regulation is provided in writing.

- On May 12, 2022, the City Council responded to the written request, scheduling an appointment for the collection of biometric data for May 19, 2022, without addressing the part regarding the review of the legality of the biometric systems implemented that the complainant included in his letter.

- The complainant states that on the date scheduled for the collection of biometric data, May 19, 2022, he was verbally informed that the data collection was canceled until further notice.

Along with the complaint, he submits the referenced documents in the complaint.

SECOND: On December 27, 2022, a resolution of inadmissibility of the complaint was issued due to lack of sufficient evidence of the implementation of the facial recognition biometric system by the City Council.

THIRD: On January 23, 2023, a request for reconsideration against the inadmissibility was filed, in which new documentation was submitted. This request was resolved by Resolution dated April 17, 2023, in which it was resolved to uphold the appeal and admit the complaint for processing, considering that: “along with the request for reconsideration, new documentation relevant to the issues raised has been submitted, which must be analyzed by the General Subdirectorate of Data Inspection.”

FOURTH: In compliance with this resolution, the General Subdirectorate of Data Inspection proceeded to initiate preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, within which the following actions have been carried out:

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An information request was made to the City Council on April 27, May 19, and July 14, 2023, and a response was received from them dated July 20, 2023, which states, in summary, the following:

- They acknowledge having implemented the fingerprint clocking system since 2015.
- In response to the question regarding the treatments carried out and their start date, the City Council indicates the following:

“On 10/19/2021, a circular was issued by the Councilor for Economy, Finance, and Human Resources regarding the implementation of a time control system called TARA (Time Applied to Resources and Actions). Employees are urged to clock in through the corresponding terminals (exceptionally, for personnel temporarily working remotely, until the return to in-person work, control was enabled through the computer – web). Since 11/02/2021, employees have been urged to clock in using the new system, as well as from 01/01/2022 to manage licenses, permissions, and vacations. In this regard, the Regulation on Time Control was not definitively approved until the plenary agreement of 03/31/2022 and publication in the BOP No. 41 of 04/06/2022. The implementation of the time control system was carried out, basically, through terminals with facial recognition, given the socio-health crisis situation of COVID; moreover, due to this, the management of teleworking was implemented. The time control is a procedure of progressive implementation, which, in addition to the installation of clocking terminals, requires the management of different services for detailing special workdays, planning the installation of new terminals, training employees, resolving logical implementation problems, etc.”

- When asked if they requested a report from the Data Protection Delegate (hereinafter, DPD) prior to initiating the new processing operations planned for clocking in the aforementioned municipal regulations, the City Council states: “No report was requested from the Data Protection Delegate prior to the start of the aforementioned treatments, although there is a report dated November 24, 2020, regarding the suitability concerning the possibility of implementing labor clocking through facial recognition in relation to the hygiene measures that must be applied due to the health situation caused by the COVID-19 pandemic when it comes to biometric verification/authentication (one-to-one). The aforementioned PRODAT report issued by the Data Protection Delegate on 11/24/2020 regarding the suitability of implementing labor clocking through facial recognition is attached, along with a copy of the Legal Report AEPD 36/2020 on the use of facial recognition techniques in conducting online assessment tests based on the state of emergency declared by Royal Decree 463/2020, of March 14.”

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- It states that no Data Protection Impact Assessment has been carried out regarding the processing.

- Finally, it indicates that not all employees have a corporate mobile device to clock in using geolocation, with only those employees who were available voluntarily installing it on their personal mobile devices. Recently, corporate mobile phones and SIM cards have begun to be provided to employees who clock in using this method.

Along with its written allegations, the City Council attaches the mentioned municipal regulations, the ENS_MHP and ISO_27001_MHP certificates, and the PRODAT and AEPD reports referenced above. It is noted that the certificates provided by the City Council are issued by the entity MHP SERVICIOS DE CONTROL, S.L (hereinafter MHP), and that the draft Municipal Regulation states that a data processing contract has been signed with the same. For this reason, a request was made to MHP on June 26, 2023, requiring it to provide the data processing contract signed with the City Council, and the Record of Processing Activities for the clocking in through facial recognition and geolocation via mobile, and requesting a report on whether a personal or corporate mobile phone was used for clocking in via geolocation.

On July 6, 2023, MHP submitted allegations, acknowledging that it had been contracted by the City Council as the data processor for the implementation of the TARA time management system. In its document, MHP:

- Provides two data processing contracts signed with the City Council, dated March 2, 2020, and August 2, 2021, and the exchanged emails for the contracting. (DOCS 2 to 4).
- Regarding the Record of Processing Activities, it provides the two that were prepared on the occasion of each contract for facial recognition and the geolocation system, as required. (DOCS 5 to 7). Regarding whether the geolocation system via mobile was installed on a personal or corporate mobile: it indicates that the data controller is the only one who can provide information on this matter. However, MHP states that it recommended the use of corporate mobile devices and not personal ones by the workers, as indicated in the Protocol for the Implementation of the Comprehensive Time Control System (DOC 8), which was attached to the contract signed with the City Council.

All of this is based on MHP's interpretation of the ruling issued by the National Court on February 6, 2019, "Telepizza Case," confirmed by the Supreme Court, in which it was established that the company cannot force delivery drivers to connect their own mobile phones to the company's software applications to facilitate their geolocation during deliveries.

It is noted that the "Protocol for the Implementation of the Comprehensive Time Control System, October 2022 edition," approved by the DPD of MHP, and provided as DOCUMENT 8, which MHP claims to have attached to the contract signed with the City Council, contains in its section 13 a section of suggested models for use by the data controller, among which are the informative clauses for all clocking in alternatives and informed consent, and a possible DPIA model regarding the processing of personal data related to the implemented clocking in systems.

On November 22, 2023, a Diligence by the Inspector is issued, stating that, after a search, the information found regarding the Record of Processing Activities (RAT) is added to the file in the Transparency section of the City Council's website, https://www.telde.es/wpcontent/uploads/2022/07/RAT_Entidad_Publica_v3_MI-AYUNTAMIENTO-DE-TELDE.pdf, Ref. v. Gen. 08-01-2020, Author PRODAT.

Finally, on December 18, 2023, the inspector issues a Report on Preliminary Actions, providing conclusions regarding the actions taken.

From all the documentation provided during the preliminary actions phase, the following chronology of events derived from the actions taken emerges:

- 2015: Implementation of the fingerprint clocking in system.
- March 2, 2020: The City Council decides to implement a new clocking in system for its municipal employees and approves an initial contract to entrust the processing of personal data to the entity MHP.
- August 2, 2021: The City Council signs a second and final data processing contract with MHP.
- October 19, 2021: The Circular from the Department of Economy, Finance, and HR is issued regarding the attendance control of municipal employees, and employees are informed that facial recognition clocking in will begin in a trial phase, and definitively upon the approval of a Regulation.
- November 2, 2021: According to the City Council's acknowledgment in its allegations, clocking in

begins in a trial phase, as indicated in the Circular.

- November 19, 2021: Minutes of the General Negotiation Table with the trade union representatives of the workers, approving the Regulation of Working Hours and Management of Municipal Personnel Permits of the City Council of Telde.

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-16/12/2021: Certificate of agreement of JGL (Local Government Board) approving the Draft Regulation Governing the working hours and management of permits for municipal personnel of the City Council of TELDE.

-27/12/2021: Certificate of plenary agreement of the City Council of Initial Approval of the working hours Regulation.

-3/1/2022: Publication in the BOP No. 1 (Official Bulletin of the Province of Las Palmas). Submission to public information of the working hours Regulation.

-31/3/2022: Certificate of plenary agreement on Definitive Approval of the working hours Regulation.

-6/4/2022: Publication in the BOP No. 41. This signifies the entry into force of the working hours Regulation according to the D.F 3rd of the same.

FOURTH: On April 15, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the accused party, for the alleged infringement of Article 38 of the GDPR, Article 9 of the GDPR, and Article 35 of the GDPR, classified under Article 83.4.a) of the GDPR and Article 83.5.a) of the GDPR. In the aforementioned initiation Agreement, it was agreed:

“ORDER as a provisional measure to the CITY COUNCIL OF TELDE, with NIF P3502600D, in accordance with the provisions of Article 69 of the LOPDGDD and Article 56 of the LPACAP, the temporary suspension of all processing of personal data corresponding to biometric timekeeping systems—and especially those related to the facial recognition system—and timekeeping through a mobile APP with geolocation of its employees as a method of controlling compliance with the working hours of its employees.

The provisional measure must be carried out within ten working days, counted from the notification of this agreement to open the procedure, and will remain in effect until its final resolution, in which it must be confirmed, modified, or lifted, without prejudice to the provisions of Article 56.5 of the LPACAP, and a definitive limitation or prohibition of such processing operations may be agreed upon in the final resolution in accordance with the provisions of Articles 58 of the GDPR and 69 of the LOPDGDD. To this end, it must justify to this Spanish Agency for Data Protection the compliance with this requirement.”

The City Council of Telde has not yet demonstrated that it has executed this provisional suspension measure.

FIFTH: The aforementioned initiation agreement was notified to the accused entity on April 17, 2024, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), as evidenced by the acknowledgment of receipt in the file, and after the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from the accused party.

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Article 64.2.f) of the LPACAP - a provision of which the responding party was informed in the agreement to open the procedure - establishes that if no allegations are made within the stipulated timeframe regarding the content of the initiation agreement, when it contains a precise statement about the responsibility attributed, it may be considered a proposal for resolution. In the present case, the

initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the responding party has not made allegations against the initiation agreement of the file and in accordance with what is established in Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution. In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in the present procedure.

PROVEN FACTS

FIRST: According to the statements made by the responding entity in its letter dated July 20, 2023, in which it responds to the transfer made by this Agency within the framework of the present procedure, the City Council has had a fingerprint timekeeping system for its employees since 2015 as a means of monitoring compliance with the working hours of its municipal employees. It is indicated in this regard: "Since 2015, biometric data processing has been carried out through fingerprint recognition, being replaced by facial recognition data, due to the health circumstances arising from the COVID-19 pandemic, having been approved in the General Negotiation Table by the different representatives of the workers."

SECOND: The City Council confirms that as of November 2, 2021, it began to implement a new system for monitoring the working hours of its employees called TARA (Time Applied to Resources and Actions), initiating a new processing of personal data for the purpose of recording and controlling compliance with working hours, contracted with the entity MHP SERVICIOS DE CONTROL, S.L (hereinafter MHP), as the data processor.

Thus, according to what has been stated and evidenced by the City Council itself in its letter dated July 20, 2023, in which it responds to the transfer made by this Agency, in its second point, referring to the "Confirmation of the application of the aforementioned treatments, indicating the start date," the City Council acknowledges the following facts: "On 10/19/2021, a circular was issued by the Councilor for Economy, Finance, and Human Resources regarding the implementation of a time control system called TARA (Time Applied to Resources and Actions). Employees are urged to clock in through the corresponding terminals (exceptionally, for personnel who are temporarily working remotely, control through the computer – web was enabled until the return to in-person work). As of 11/02/2021, employees are urged to clock in using the new system, as well as from 01/01/2022 to manage licenses, permits, and vacations. In this regard, the Regulation on Time Control was not...

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definitively approved until the plenary agreement of 31/03/2022 and publication in the BOP No. 41 of 06/04/2022. The implementation of the time control system was carried out, basically, through terminals with facial recognition, given the socio-health crisis situation of COVID; moreover, for this reason, the management of teleworking was implemented. Time control is a procedure of progressive implementation, which, in addition to the installation of clocking terminals, requires the management of different services for the detailing of special workdays, the planning of the installation of new terminals, the training of employees, the resolution of logical implementation problems, etc.

THIRD: From the documents provided by the City Council itself in its letter of July 20, 2023, and the data processor MHP in its letter of July 6, 2023, it is evident that the process of implementing this new TARA System was carried out progressively, according to the following chronology:

- 2/3/2020: The City Council approves an initial contract to assign the processing of personal data to the entity MHP in relation to the provision of the Comprehensive Time Management Service, whose object and purpose are set forth in its first clause, which states the following: "Through this agreement, it is intended to define and establish the legal regime applicable to the processing of personal data that are under the responsibility of the client, and that at the request of the client, require to be processed by MHP Servicios de Control S.L., to carry out the provision of the contracted Comprehensive Time

Management Service.” This is carried out in the second clause of the Assignment Contract, which determines that: “To successfully carry out the provision of the Comprehensive Time Management Service, the Data Controller will make available to the Data Processor only the following personal data of each of its users:

- a) Name and surname.
- b) National identity document.
- c) Fingerprint minutiae and its associated numerical code, assigned by the client or, failing that, by MHP.
- d) Data related to the job position: Department, category, shift, etc.
- e) User's email.
- f) If applicable, a PIN code generated randomly by MHP associated with the worker, a phone number assigned by the Controller to carry out phone clocking, and if necessary, their geolocation, and in the case of clocking via card, a numerical code that identifies the user.

The collection of biometric data will be carried out at the facilities of the Data Controller and will be conducted through hardware devices owned by the Data Processor, who will incorporate them into their information systems located at the central facilities of the Data Processor via remote access, where they will be processed for the effective provision of the service.”

- 2/8/2021: Signing of a second data processing assignment contract with MHP. According to the statements made by MHP in its letter of July 6, 2023, first point: “given that due to the Covid-19 health crisis, the national market demanded the implementation of other clocking alternatives, MHP developed among its commercial options the clocking device (terminal) through facial recognition. The City Council of Telde showed interest in...

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With this new alternative, the update of the data processing contract is carried out, which is attached for the appropriate evidentiary purposes as document number FOUR, and in which the processing of the biometric data fingerprint/facial recognition is expressly specified.

According to the second clause of the aforementioned contract, the parties agree to expand the personal data that will be made available to the data processor, depending on the possible modality of time registration chosen by the City Council, in the following terms:

“To successfully carry out the Comprehensive Service for Time Management, the Data Controller will make available to the Data Processor, solely and exclusively, the following personal data of each of its users based on the time registration modality that has been chosen:

I.- Biometric Registration (fingerprint/facial recognition) through TRD Device and/or hamster: name, surname, ID number, data related to the job position (department, category, shift, etc.), user's email, fingerprint/facial pattern minutiae with its associated numerical code, and if applicable, PIN code.

The collection of biometric data will be carried out at the facilities of the Data Controller and will be conducted through hardware devices owned by the Data Processor, who will incorporate them into their information systems located at their central facilities in Las Palmas de Gran Canaria via remote access, where they will be processed for the effective provision of the service.

II. Registration through magnetic and/or proximity card: name, surname, ID number, data related to the job position (department, category, shift, etc.), email, and numerical code associated with the user.

III. Telephone registration: name, surname, ID number, data related to the job position (department, category, shift, etc.), email, and phone number assigned to the user previously assigned by the Data Controller.

IV.- Mobile App Registration Geogestión with geolocation: name, surname, ID number, data related to the job position (department, category, shift, etc.), email, mobile device data (alphanumeric code unique ID generated by the combination of the device and the Geogestión Horaria application), and its geolocation detailing the coordinates of the user's location, which will only be activated and collected at the moment the registration is made.

V. IV.- Mobile App Registration Geogestión without geolocation: name, surname, ID number, data related to the job position (department, category, shift, etc.), email, mobile device data (alphanumeric code unique ID generated by the combination of the device and the Geogestión Horaria application),
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VI.- Time recording via web link: name, surname, ID number, data related to the job position (department, category, shift, etc.), email address, numerical code associated with a universal unique identifier of the equipment assigned to the user, and, where applicable, the public IP associated and assigned by the Data Controller.”

- 19/10/2021: The Circular from the Department of Economy, Finance, and HR is issued regarding the attendance control of municipal employees, which states the following:

“(…) A new time control system called TARA (Time Applied to Resources and Actions) will be implemented. Daily time records in the TARA system must be made at the terminals installed in the respective municipal offices, allowing time recording only at the terminal located in the office where services are provided. Exceptionally, for personnel who are temporarily working remotely, until the return to in-person work, control through a computer has been enabled.

From the next day, November 2, 2021, time recording will proceed with this new system, in a trial phase.

Starting from January 1, 2022, once the Regulatory Regulation of Time Control is approved, all management of requests for compensations, licenses, permits, and vacations will also be conducted with this system. You will be informed of the implementation as we progress through the phases of it.”

- 2/11/2021: As acknowledged by the City Council in its letter dated July 20, 2023, time recording begins in accordance with the new facial recognition system using the terminals located in each office for in-person time recording, and the web connection system is enabled for cases of authorized telework during the Covid-19 pandemic.

- 6/4/2022: Publication and entry into force of the Regulation on Working Hours and Management of Permits for Municipal Personnel of the City Council of Telde, according to D.F 3rd of the same (BOP No. 41). After being agreed upon by the General Negotiation Table with the trade union representatives of the workers on November 19, 2021, and definitively approved on March 31, 2022, by the Plenary of the City Council.

According to its Article 1: “The purpose of this Regulation is to regulate the means, actions, criteria, and procedures to be followed for the control of compliance with working hours and flexible hours, implemented through the software application called Time Applied to Resources and Actions (hereinafter, TARA), as a system for managing personnel-related procedures concerning vacations, permits, licenses, working hours, and schedules affecting the personnel serving the Administration of the City Council of Telde.”

And in its Article 11, the Regulation states the following regarding the modalities of time recording, which it refers to as “electronic time recording”:

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“Article 11.- Time Control System.

1. Without prejudice to the use of any other method, procedure, or system of attendance control that may be established, for the purposes of this regulation, the following means and systems may be used for electronic time stamping:

- a) Facial Recognition.
- b) Via the Internet, through the designated website.
- c) Recognition through geolocation.

2. All administrative units must contain a time control device using facial recognition, taking into account, in each case, the peculiarities of the dependencies in which they are located (the underlining is from the AEPD).
3. In those cases and workplaces that do not have time control devices using facial recognition, due to their peculiarities, or because the implementation is burdensome or extremely difficult, personnel must clock in using geolocation devices or, failing that, according to the instructions issued for that purpose by the Human Resources service."

FOURTH: Regarding clocking in via the Geogestión mobile APP with geolocation, the City Council confirms its effective application, acknowledging in point five of its response to the communication of July 20, 2023, the following:

"5th).- Clocking in through mobile with geolocation. Carried out via corporate or personal mobile of the municipal employee. It should be noted that not all employees have a corporate mobile device. Therefore, those who have shown their availability have installed the corresponding application on their personal mobile devices to clock in using geolocation. In this regard, no employee has been forced to install the application, and in case of refusal, a minimal circumstance, efforts have been made to manage clocking in at a terminal as much as possible." Finally, there has been no record of disagreement from all employees to whom the geolocation clocking application was installed. However, we do have requests to clock in via mobile instead of at a terminal, which have been managed by Human Resources in accordance with the Time Control Regulation and the respective dependencies/services of the applicants (mostly verbally).

FIFTH: The following documentation is included in the procedure, which certifies that the City Council of Telde is the entity responsible for the processing of personal data carried out for attendance control and recording of working hours of its employees, and that the entity MHP is in charge of the processing:

- From the signing of the two data processing service contracts of 2020 and 2021 between the City Council and MHP. In both contractual documents, the fourth clause defines the obligations of the "data controller" and "data processor." Additionally, there is a first clause stating the following: "FIRST.- Object and purpose of this Data Processing Service Contract," in which the second paragraph states: "In any case, the processing of data by the Data Processor shall be limited to the actions necessary to correctly develop the service, following the documented instructions that, in each case, are directed to it by the Data Controller."

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Processing, as required by the current European Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, hereinafter GDPR, and the Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD).

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Regulation on working hours of 31/03/21, which states in its Article 3 the following applicable rules regarding the processing of personal data:

"Article 3.- Processing of personal data

1. Any system used for time control or for the control and management of permits and licenses must comply with the Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights and with Regulation (EU) 2016/679 of the European Parliament and Council of April 27, 2016.
2. The City Council must inform workers explicitly, clearly, and unequivocally about the possible exercise of the rights of access, rectification, limitation of processing, and deletion.
3. Personal data shall be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (data minimization), accurate, and, if necessary, updated. All reasonable measures shall be taken to delete or rectify without delay any personal data that is

inaccurate concerning the purposes for which it is processed.”

SIXTH: The City Council has been processing biometric personal data (through fingerprint systems and facial recognition) and location personal data (through an app with geolocation on the personal mobile devices of employees), without having previously conducted and completed a Data Protection Impact Assessment (DPIA), neither at the time prior to its implementation nor subsequently, as acknowledged in point 4 of its response to the transfer dated July 20, 2023, which states the following: “4º).- Document of Data Protection Impact Assessment of the aforementioned treatments. There is no Data Protection Impact Assessment for the aforementioned treatments.”

SEVENTH: The City Council has not provided any documentary justification that allows for the verification of the occurrence of any of the exceptions provided in Article 9.2 of the GDPR that would permit the processing of biometric data as a means of controlling the legal obligation to monitor and control the working hours of municipal employees.

EIGHTH: It is noted that the Data Protection Officer (DPO) of the City Council - whose designation was mandatory - did not participate nor was consulted by the City Council at any of the stages of implementation of this processing, neither beforehand, during, nor after the initiation of any of the 3 processing operations carried out to control the working hours of its municipal employees starting from 2-11-21.

The City Council clearly acknowledges that: “No report was requested from the Data Protection Delegate prior to the commencement of the aforementioned treatments, with an existing report dated November 24, 2020, regarding suitability concerning the possibility of implementing labor registration through facial recognition in relation to the hygiene measures that must be applied due to the health situation caused by the COVID-19 pandemic when it comes to biometric verification/authentication (one-to-one).”

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The aforementioned PRODAT Report dated 24/11/2020 submitted by the City Council does not contain a signature footer nor does it identify the person or body issuing it. Furthermore, its object of analysis is the following: “Having been consulted by the M.I. CITY COUNCIL OF TELDE regarding the suitability of implementing labor attendance through facial recognition, it must be analyzed whether the implementation of the facial recognition system complies with the current state regulations on the protection of personal data.”

LEGAL GROUNDS

I. Competence and procedure

In accordance with the powers granted by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II. Preliminary issues

2.1. Description of the work schedule control system implemented by the City Council.

According to the documentation in the procedure, and as stated by the City Council itself and the data processor, the City Council progressively implemented a new time control system called TARA, which established the attendance systems that would be applicable to control the working hours of municipal employees, through different municipal regulations:

- On 10-1-21, the Circular from the Department of Economy, Finance, and HR was issued regarding the attendance control of municipal employees, in which it is communicated to employees that: “(...) A new time control system called TARA (Time Applied to Resources and Actions) will be

implemented. Daily attendance in the TARA system must be carried out at the terminals installed in the respective municipal offices, only allowing attendance at the terminal located in the office where services are provided. Exceptionally, for personnel who are temporarily working remotely, until the return to in-person work, control has been enabled through computer.

From the next day, November 2, 2021, attendance will be recorded with this new system, in a trial phase.

Starting from January 1, 2022, once the Regulatory Regulation of Time Control is approved, all requests for compensations, licenses, permits, and vacations will also be processed with this system. Employees will be informed of the implementation as we progress through the phases.”

- The City Council's allegations expand on this information, from which the following relevant facts for the present procedure can be deduced:

- Since 2015, the system used for attendance was through fingerprint recognition, without further statements regarding it.

- The so-called “new attendance system carried out through the corresponding terminals” referred to in the Circular is the facial recognition system, which is established as the common attendance system or general rule.

- Exceptionally, for personnel who are temporarily working remotely, until the return to in-person work, control has been enabled through the computer – web.”

- The systems implemented through the Circular began on 2/11/21 in a “trial phase.”

- Although it is indicated that starting from 1/1/22, requests for licenses, permits, and vacations will be processed according to the TARA application, the City Council indicates that “the Regulation of Time Control was not definitively approved until the plenary agreement of 31/03/2022 and publication in the BOP No. 41 of 06/04/2022.”

- According to the Final Provision 3 of the aforementioned Regulation of Time Control, it came into force on the day of its publication in the BOP (6-4-22), and expanded to 3 the systems of “electronic attendance” of municipal employees. Regarding the implemented attendance systems, Article 11 is particularly noteworthy, which states the following:

“Article 11.- Time control system.

1. Without prejudice to the use of any other method, procedure, or system of permanence control that may be established, for the purposes of this regulation, the following means and systems may be used for electronic attendance:

a) Facial Recognition.

b) Via the Internet, through the web enabled for this purpose.

c) Recognition through geolocation.

2. All administrative units must contain a time control device through facial recognition, taking into account, in each case, the peculiarities of the offices in which they are located (the underlining is by the AEPD).

3. In those cases and workplaces that do not have time control devices through facial recognition, due to their peculiarities, or because the implementation is burdensome or extremely difficult, personnel must record attendance through geolocation devices or, failing that, in accordance with the...

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indications that may be issued by the Human Resources service.”

Both regulations were preceded by two data processing contracts with the entity MHP, which have been submitted to the proceedings, with the aim of implementing the new comprehensive time management control system called TARA.

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On 2/3/20, the City Council approved an initial contract to entrust the processing of personal data to the entity MHP in relation to the provision of the Comprehensive Time Management Service, the object and purpose of which is set forth in its first clause, which states the following: “Through this agreement,

it is intended to define and establish the legal regime applicable to the processing of personal data that is under the responsibility of the client, and that at the request of the client, require to be processed by MHP Servicios de Control S.L., in order to carry out the provision of the contracted Comprehensive Time Management Service.”

For these purposes, the second clause of the Data Processing Agreement indicated the personal data that needed to be processed in order to implement biometric timekeeping systems (limited to fingerprinting), as well as geolocation timekeeping systems, but the contract did not clearly specify the possible modalities of timekeeping for the workday that would be subject to processing.

Specifically, this clause determines that: “In order to successfully carry out the provision of the Comprehensive Time Management Service, the Data Controller will make available to the Data Processor only the following personal data of each of its users:

-
- a) Name and surname.
-
- b) National identity document.
-
- c) Fingerprint minutiae and its associated numerical code, assigned by the client or, failing that, by MHP.
-
- d) Data related to the job position: Department, category, shift, etc.
-
- e) User's email.
-
- f) Where applicable, a randomly generated PIN code by MHP associated with the worker, a phone number assigned by the Controller for carrying out telephone timekeeping, and if applicable, their geolocation, and in the case of timekeeping via card, a numerical code that identifies the user.
-

The collection of biometric data will be carried out at the facilities of the Data Controller and will be conducted through hardware devices owned by the Data Processor, who will incorporate them into their information systems located at the central facilities of the Data Processor via remote access, where they will be processed for the effective provision of the service.”

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The second data processing contract with MHP was signed on 2-8-21. According to the statements made by MHP in their letter dated July 6, 2023, point one, the signing of a new contract was due to: “that due to the Covid-19 health crisis, the national market demanded the implementation of other timekeeping alternatives, MHP developed among its commercial options the

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time recording device (terminal) through facial recognition. The City Council of Telde, showing interest in having this new alternative, proceeds to update the data processing contract, which is attached for the appropriate evidentiary purposes as document number FOUR, and in which it is expressly specified the processing of the biometric data fingerprint/facial.

Thus, in order to expand the possible modalities of time recording to facial recognition, the second clause of this contract determined the personal data that should be subject to processing in each of the modalities of time recording available in the system developed by the processor MHP, and detailed 6 possible modalities of time recording for the workday that were included in the contract.

In this regard, this second clause provided the following: “To successfully carry out the provision of the Comprehensive Service for Time Management, the Data Controller will make available to the Data Processor, solely and exclusively, the following personal data of each of its users depending on the time recording modality that has been chosen:

I.- Biometric Time Recording (fingerprint/facial recognition) through TRD Device and/or hamster: name, surname, ID number, data related to the job position (department, category, shift, etc.), user's email, fingerprint/facial pattern minutiae with its associated numerical code, and, where applicable, PIN code. The collection of the biometric data will be carried out at the facilities of the Data Controller and will be conducted through the hardware devices owned by the Data Processor, who, through remote access, will incorporate them into their information systems located at their central facilities in Las Palmas de Gran Canaria, where they will be processed for the effective provision of the service.

II. Time Recording through magnetic and/or proximity card: name, surname, ID number, data related to the job position (department, category, shift, etc.), email, and numerical code associated with the user.

III. Telephone Time Recording: name, surname, ID number, data related to the job position (department, category, shift, etc.), email, and phone number assigned to the user that has previously been assigned by the Data Controller.

IV.- Mobile App Time Recording Geogestión with geolocation: name, surname, ID number, data related to the job position (department, category, shift, etc.), email, mobile device data (alphanumeric code unique ID generated by the combination of the device and the Geogestión Horaria application), and its geolocation detailing the coordinates of the user's location, which will only be activated and collected at the moment the time recording is made.

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V. IV.- Mobile App Geogestión without geolocation: name, surname, ID number, data related to the job position (department, category, shift, etc.), email address, data of the mobile device (alphanumeric code unique ID generated by the combination of the device and the Geogestión Horaria application).

VI.- Timekeeping via web link: name, surname, ID number, data related to the job position (department, category, shift, etc.), email address, numerical code associated with a universal unique identifier of the equipment, assigned to the user, and where applicable, the public IP associated and assigned by the Data Controller.

In conclusion, from the chronology presented, it follows that the implementation by the City Council of the new time control system called TARA, to serve as a means of attendance control for its public employees, was carried out progressively, as it decided to expand the chosen timekeeping modalities, thus changing the initial service contract and implementing the various modalities in phases as it approved the municipal regulations that were legally necessary to convert these systems into mandatory attendance control means for its personnel. Thus:

- On 2-3-20, the City Council first contracted with the data processor MHP a time control system that allowed the processing of biometric data based on fingerprints and personal location data, among others, but did not foresee the possibility of facial recognition, signing a preliminary service contract that did not specify the possible modalities of timekeeping.

- Subsequently, the City Council decided to expand the processing to the facial recognition timekeeping system, for which it signed a new service contract on 2-8-21 that specified 6 possible modalities of timekeeping, with the required personal data: biometric timekeeping via fingerprint/facial recognition, telephone timekeeping, Mobile App Geogestión timekeeping with geolocation, Mobile App Geogestión timekeeping without geolocation, and timekeeping via web link. To implement them, on 10-1-21, it issued a Circular urging its employees to start timekeeping via facial recognition at the terminals of their offices from 2-11-21, and exceptionally enabled timekeeping via connection through their computers for teleworking cases. Thus, from 2-11-21 until the approval and entry into force of the Time Control Regulation, the timekeeping modalities were: a) common system: biometric timekeeping via facial recognition, and b) exceptional system: timekeeping via web connection.

- With the entry into force of the aforementioned Time Control Regulation on 6-4-22, the City Council expanded to 3 the timekeeping systems for the workday, which would become mandatory from then until the present for municipal employees, stating in Article 11 of the Regulation that "without prejudice

to the use of any other method, procedure, or system of control of...

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duration that may be established, for the purposes of this regulation, the following means and systems may be used for electronic timekeeping:

- a) Facial Recognition.
- b) Via the Internet, through the designated website.
- c) Recognition through geolocation.

2.2. Personal data subject to processing.

The GDPR aims to guarantee the right to the protection of personal data of individuals. Article 4.1 of the GDPR defines "personal data" as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

In this case, we are dealing with the progressive implementation of a new time control system, called the Comprehensive Time Management Service TARA (hereinafter, TARA), which affected the processing of personal data of all municipal employees of the City Council required to use the timekeeping systems established by the City Council of Telde as a means of controlling working hours. Regarding the establishment of obligations concerning the processing of personal data, two distinct moments in this progressive implementation must be clearly differentiated:

- The implementation of the new TARA system begins on 2/11/2021, mandatorily, by order of the Circular dated 10-1-21, which urged timekeeping through facial recognition at the terminals of the facilities for those who worked on-site, and via web connection for those who were exceptionally teleworking.

- And from the entry into force of the Time Control Regulation on 6-4-22 (date of publication in the BOP), the possible timekeeping systems would expand to three: facial recognition, web connection timekeeping, and timekeeping through an APP on the mobile phone with geolocation.

All the data that the City Council had to make available for the operation of each of the timekeeping methods, according to the second clause of the data processing contract, undoubtedly qualifies as personal data, in the sense expressed in Article 4.1 of the GDPR, as they provide "information relating to an identified or identifiable natural person." This implies the obligation to apply data protection regulations to their processing.

Among these personal data are identifying personal data specific to all timekeeping systems for work control (name, surname, ID number, data related to the job position (department, category, shift, numerical code associated with a unique universal identifier of the equipment assigned to the user, user's email, mobile device data (alphanumeric code unique ID that...

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is generated by the combination of the device and the Geogestión Horaria application, whose processing is subject to the principles and duties established by data protection regulations in general. However, the personal data required to carry out the processing operations involved in the implementation of systems referred to as "biometric timekeeping" and "Geogestión Mobile App timekeeping with geolocation" involves the processing of biometric or location personal data. The processing of this data within the purpose of monitoring the working hours of personnel carries with it particularly significant risks to the rights and freedoms of individuals, whose processing is linked to the fulfillment of specific obligations set forth by the GDPR, which are in addition to the compliance with the principles and obligations established for the processing of personal data in general.

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Thus, on one hand, what the contract refers to as "fingerprint/facial pattern minutiae with its associated

numerical code" used for biometric timekeeping qualifies as biometric personal data when used to identify or authenticate the identity of a person in accordance with Article 4.14 of the GDPR, as is the case.

Therefore, if biometric data is to be processed for the control of working hours, it must be taken into account: (i) that biometric data is a special category personal data, the processing of which is generally prohibited by Article 9.1 of the GDPR, unless certain exceptional circumstances provided for in Article 9.2 of the GDPR are met, the existence of which must be demonstrated in order to initiate this type of processing; (ii) and that the processing of biometric data is considered "high risk" according to Article 35 of the GDPR, so it will be necessary to prepare and pass a Data Protection Impact Assessment (hereinafter, DPIA) that includes all these elements.

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On the other hand, it should be noted that the timekeeping system via the mobile APP with geolocation implemented by the City Council requires processing data of "geolocation detailing the coordinates of the user's location," which are also personal data, the processing of which is a particularly sensitive matter as it affects the freedom of movement of individuals, posing a high risk to the rights and freedoms of employees who use this method of timekeeping, which is why the GDPR also requires the prior completion and passing of a DPIA, which must be continuously monitored in accordance with the requirements of Article 35 of the GDPR.

2.3. Operations subject to processing.

Article 4.2 of the GDPR defines "processing" as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction."

In accordance with the above, the implementation of the working hours control system by the City Council involved the processing of personal data whose purpose is to enable the monitoring of the working hours of municipal employees.

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City Council, which is composed of 3 processing operations on a set of different personal data, according to Article 4.2 of the GDPR:

A)

Processing operations related to the purpose of time control through a facial recognition system, in which, among others, biometric personal data is processed.

B)

Processing operations related to the purpose of time control through a geolocation system, in which, among others, location personal data is processed that requires connection via geolocation through an APP on the mobile phone.

C)

Processing operations related to the purpose of time control through a web connection system regarding the personal data required for the time registration system via web connection.

In conclusion, the implementation of the new time management system called TARA marked the beginning of a new time control processing by the City Council, composed of 3 processing operations (one for each time registration system), which fits into the concept provided in Article 4.2 of the GDPR. Processing to which all principles and obligations required in the personal data protection regulations apply.

2.4. Data Controller.

Regarding responsibility, Article 4.7 of the GDPR defines: "7) 'data controller' or 'controller': the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if Union or Member State law determines the purposes and

means of the processing, the controller or the specific criteria for its designation may be established by Union or Member State law.”

As stated, it is evidenced that the City Council contracted the entity MHP as the data processor. However, from the examination of the municipal regulations and the processing contract provided in the procedure, multiple pieces of evidence confirm that the City Council is the data controller, as it defines the purposes and means of the processing, for the purposes provided in Article 4.7 of the GDPR:

- From the signing of the two processing contracts of 2020 and 2021 between the City Council and MHP. In both contractual documents, the fourth clause defines the obligations of the “data controller” and “data processor.” And there is a first clause that states the following: “FIRST.- Object and purpose of this Processing Assignment contract,” in which the second paragraph states: “In any case, the processing of data by the Data Processor shall be limited to the actions necessary to properly develop the service, following the documented instructions that, in each case, are directed to it by the Data Controller, as required by the current European Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, hereinafter GDPR and Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD).”

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- The Circular from the Human Resources Department dated 10/01/21 urges municipal employees for the first time to clock in according to the new system that would later be approved by full regulation, which confirms that it was the City Council that established the modalities of timekeeping that employees would be required to follow, as well as the personal data that would be subject to processing in each case.

- From the approval of the Labor Regulation dated 31/03/21 (in force since 6/4/22), which states in its Article 3 the following applicable rules regarding the processing of personal data: “Article 3.- Processing of personal data 1. Any system used for time control or management of permits and licenses must comply with Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights and with Regulation (EU) 2016/679 of the European Parliament and Council of April 27, 2016. 2. The City Council must inform workers clearly, expressly, and unequivocally about the possible exercise of the rights of access, rectification, limitation of processing, and deletion. 3. Personal data must be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (data minimization), accurate, and, if necessary, updated. All reasonable measures must be taken to delete or rectify without delay any personal data that is inaccurate concerning the purposes for which it is processed.”

In conclusion, we could say that the content of both contracts clearly indicates that it is the City Council that determines the means and purposes of the processing, and that MHP must follow its instructions. Thus, it is the City Council that sets the instructions for the different timekeeping systems that the processor must comply with and develop, provides the personal data of its employees (including biometric data) to the processor, and is responsible for adopting the technical and organizational measures outlined in Articles 24 and 32 of the GDPR.

Ultimately, only the City Council of Telde is responsible for the processing of personal data carried out for the purpose of controlling the working hours of its employees. Consequently, the City Council is the presumed responsible party to whom this sanctioning procedure should be directed in the event of any violations classified as infractions, in accordance with the provisions of Article 70.1 a) of Organic Law 3/2018, of December 5, on the protection of personal data and guarantee of digital rights (hereinafter, LOPDGD):

“Article 70. Responsible parties.

1. The following are subject to the sanctioning regime established in Regulation (EU) 2016/679 and in this organic law: a) The controllers of the processing. b) The processors of the processing. c) The representatives of the controllers or processors of the processing not established in the territory of the

European Union. d) The certification entities. e) The accredited entities supervising the codes of conduct. (...)"

III. On the obligation to carry out and pass a DPIA under Article 35 of the GDPR

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3.1. Regarding the risks arising from the processing of biometric personal data and personal location data.

In accordance with the Principle of Risk Management by Design and by Default, as well as the Principle of Proactive Accountability, which inspire the new regulation, the new GDPR emphasizes that the data controller must seriously assess the risks of the processing they wish to establish concerning the rights and freedoms of the data subjects (always prior to initiating any processing, and continuously if they decide to do so), opting for a risk analysis approach by design and by default, in order to identify them, determine the likelihood of their occurrence and their impact, and foresee measures and guarantees that eliminate or, at the very least, mitigate the identified risks, preventing their occurrence. This analysis must be documented by the controller and included in a mandatory DPIA in cases where it is likely that the processing entails a "high risk" as provided for in Article 35 of the GDPR.

This prior risk analysis is especially important when the processing of personal data is carried out by Public Administrations (hereinafter, PAs), as noted in the Guide on Technologies and Data Protection in PAs published by this Spanish Data Protection Agency:

"The processing of personal data in PAs involves distinct risks compared to the risks of processing that any other controller may carry out, which arise, at least, from the volume of affected subjects, the extent of the data collected, the impossibility, in many cases, of opposing the processing, and the inherent power or asymmetry that exists between PAs and the citizens or data subjects whose data they process. Furthermore, regardless of the fact that all processing in PAs is guided by a spirit of public service, the same spirit that encourages the work of their employees, these potential risks could materialize for citizens in certain situations, such as, for example, situations of breakdowns in the rule of law, situations of abuse by public controllers, in circumstances of massive or selective filtering of personal data as a result of security breaches, in cases of possible legislative changes even in third countries to which the data may have been transferred, in cases of corruption, in situations of uncontrollable emergencies, etc."

Consequently, PAs, as they are responsible for processing citizens' data, before launching new processing activities or modifying already provided services that utilize technologies they have not previously used, being the first occasion they implement them for a specific purpose, must identify the risks to which the processing may be exposed. They must also adopt the necessary technical and organizational measures that, by design and by default, allow for the elimination or at least acceptable mitigation of the risks that could arise from the processing concerning the rights and freedoms of individuals.

The decision to opt for processing based on biometric methods such as fingerprinting or facial recognition, or methods that process the location data of natural persons, is not trivial. This processing can be truly intrusive and requires...

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of a calm ethical and legal debate before deciding on its implementation, since collecting fingerprints, creating a facial pattern/vector, or gathering the location coordinates of personnel can have very adverse effects on the fundamental rights and human freedom and integrity of these employees that do not occur with other methods of time control.

See just some of the special characteristics of unique identification systems based on biometric data and consider the significant impact they produce when these data are compromised, compared to other methods (signature and completion of sheets, magnetic cards, etc.):

- Biometric data can be processed and stored in different ways. Sometimes, the biometric information captured from a person is stored and processed in raw form, allowing the source from which it comes to be recognized without special knowledge; for example, a photograph of a face, a photograph of a fingerprint, or a voice recording. Other times, the raw biometric information captured is processed in such a way that only certain characteristics or traits are extracted and saved as a biometric template, referred to here as "fingerprint minutiae" for the fingerprint; and "facial pattern" for facial recognition.
- Unlike other personal data, biometric data are unique, permanent, or definitive over time, and the person cannot free themselves from them; they can never be changed, not even with age, which means that the damage caused in the event of compromise-loss or intrusion into the system is irreparable in this case. Unlike a password, in the event of loss, the data of our fingerprint or face cannot be changed.
- Furthermore, because biometric data are specific to a person and perpetual, the user can use the same data across different systems, which poses an extra risk.
- While traditional authentication methods such as passwords require a 100% match of character by character to allow the user to access, for example, an account or application (deterministic methods), biometric methods are referred to as "probabilistic," because they are based on the probability that the user attempting to access a particular device or application is the same person as the registered user. We can measure the performance of a biometric system based on three main characteristics. These are: false rejection rate (FRR), false acceptance rate (FAR), and equal error rate (ERR). The false rejection rate represents the probability of detection errors by a biometric system, meaning that it cannot recognize a user whose biometric characteristics are already in the database. In the event of a rejection, the person must verify their identity again. From a security and protection perspective, this rate does not necessarily mean that it is a negative outcome. Each biometric method, whether facial reading, fingerprint, palm print, iris, etc., has different values for different rates based on which a system rejects or accepts inputs. Error rates, as stated by the City Council, were high in this case. It is also noteworthy that among the methods that use biometric data, those based on facial recognition (implemented as a general timekeeping system by the City Council) can be even more intrusive than fingerprint detection, exponentially increasing the risks to the fundamental rights and freedoms of the individuals concerned, given the uses of facial recognition, especially when combined with artificial intelligence as a system for automated recognition of human traits.

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This has been highlighted by the Guidelines 05/2022 of the European Data Protection Board (hereinafter, EDPB) regarding the use of facial recognition technology (referred to as FRT) in the field of law enforcement, an independent advisory body and the highest authority in the matter, which indicates the following (the underlining is ours):

"Much of the increased interest in FRT is based on the efficiency and scalability of FRT. With these come the inherent disadvantages of the technology and its application, especially on a large scale. While there may be thousands of sets of personal data analyzed at the push of a button, even slight effects of algorithmic discrimination or misidentification can create a large number of individuals severely affected in their behavior and daily lives. The large scale of the processing of personal data, and in particular biometric data, is possibly another key element of FRT, as the processing of personal data constitutes an interference with the fundamental right to the protection of personal data in accordance with Article 8 of the Charter of Fundamental Rights of the European Union (hereinafter, "the Charter").

The application of FRT by law enforcement agencies will have, and to some extent already does have, significant implications for individuals and groups of individuals, including minorities. These

implications will also have considerable effects on how we live together and on our political, social, and democratic stability, valuing the great importance of pluralism and political opposition. The right to the protection of personal data is often key as a prerequisite for ensuring other fundamental rights. The application of FRT is considerably prone to interfere with fundamental rights beyond the right to the protection of personal data.”

In this context, the EDPB considers it important to remind that FRT, whether for authentication or identification purposes, does not provide a definitive outcome, but rather relies on probabilities that two faces, or images of faces, correspond to the same person. This outcome is further degraded when the quality of the biometric sample input to facial recognition is low. Blurriness of input images, low camera resolution, movement, and low light can be factors of low quality. Other aspects with a significant impact on the results are prevalence and spoofing, for example, when criminals attempt to avoid passing through cameras or deceive the FRT.

Numerous studies have also highlighted that such statistical results of algorithmic processing may also be subject to biases, particularly as a result of the quality of the source data, as well as training databases or other factors, such as the choice of deployment location. Furthermore, it is worth noting the impact of facial recognition technology on other fundamental rights, such as respect for private and family life, freedom of expression and information, freedom of assembly and association, etc. (...)

A similar situation occurs when we process personal location data of individuals, using geolocation methods that are implemented in mobile devices, such as those required by the timekeeping system through a mobile APP with geolocation used by the City Council.

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This option has consequences that affect and even transcend the realm of personal data protection, given that, according to what was already stated in Opinion 5/2005 of the Article 29 Working Party, the predecessor of the current EDPB: “the processing of location data or coordinates is a particularly sensitive issue as it relates to the essential question of the free movement of individuals in an anonymous manner,” which can severely affect not only the protection of personal data but also other fundamental rights and freedoms of individuals who are geolocated through them.

Article 2 of Directive 2002/58/EC defines location data as “any data processed in an electronic communications network indicating the geographical position of the terminal equipment of a user of a publicly available electronic communications service.”

The EDPB has already been warning about the serious risk involved in the use of infrastructures that employ geolocation, even before the approval of the new GDPR. In particular, Opinion 13/2011 on geolocation services in smart mobile devices, adopted on May 16, 2011, highlights the risks posed by the use of three types of infrastructures that employ geolocation (Wifi, base stations, and GPS technology), indicating the following (the underlining is ours):

“Smart mobile devices are very closely linked to individuals because most people tend to keep their mobile device very close to them, in their pocket, in their bag, or on their nightstand. It is rare for a person to lend their device to another. (...)

This allows geolocation service providers to have a detailed overview of the habits and patterns of the owner of these devices and to establish comprehensive profiles. From a period of nighttime inactivity, one can deduce where the person sleeps, and from a pattern of regular movements in the morning, the location of their workplace. The profile may also include data derived from the movement patterns of their friends, based on what is known as the “social graph.”

A behavior model could also include special categories of data, for example, visits to hospitals and places of worship, attendance at political events, or other specific locations that, for instance, reveal information about sexual life. These profiles can be used to make decisions that significantly affect their owner.

The technology of smart mobile devices allows for constant monitoring of location data. Smartphones can continuously capture signals from base stations and WiFi access points. Technically, tracking can

be done secretly, without informing the owner, or semi-secretly, when the person “forgets” or is not adequately informed that location services are activated or when the accessibility parameters of location data are changed from “private” to “public.”

Even when individuals deliberately allow access to their geolocation data on the Internet, through tracking and geotagging services, general and unlimited access creates new risks ranging from data theft to home burglaries or even physical assaults and harassment. As with other new technologies, a significant risk of using location data is...

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Location is the deviation of use, the fact that, based on the availability of a new type of data, new purposes are developed that were not anticipated at the time of data collection.”

The Opinion 2017 WP 249 of the Article 29 Working Party dated June 8, 2017, on the processing of personal data in the workplace, which regulates the processing operations derived from the observation of the use of ICT outside the workplace, highlights the “added” risks presented by the processing of personal location data when the employer uses the employee's own mobile devices or mobile device management processes (the so-called MDM), as is the case with the time-tracking app referred to in this file. In both cases, the processing tends to extend into the employees' domestic sphere, which necessitates certain limits.

Specifically, points 5.4.2 and 5.4.3 of Opinion 2017 WP 249 address the issues raised in the present case, where the City Council responded to requests from its employees, who volunteered to use the time-tracking system on their mobile devices by installing a geolocation app on their personal device. It should be noted that the Article 29 Working Party already expressly stated in 2017 that a Data Protection Impact Assessment (DPIA) would be necessary before using these technologies, at least when this technology is new or unknown to the data controller.

“5.4.2 USE OF THE EMPLOYEE'S OWN DEVICE

Due to the increasing popularity, functionalities, and capabilities of consumer electronic devices, employers may face requests from workers to use their own devices in the workplace to carry out their tasks. (...) However, the use of an employee's device will be personal by nature, and this is more likely to occur at certain times of the day (for example, at night and on weekends). Therefore, the use of their own devices by employees may lead employers to process extramural information about them and possibly about any family member who also uses the devices. (...)

5.4.3 MOBILE DEVICE MANAGEMENT (MDM)

Mobile device management allows employers to locate devices remotely, use specific configurations and/or applications, and erase data upon request. An employer can manage this functionality themselves or use a third party to do so. MDM services also allow employers to register or track the device instantly, even if its theft has not been reported.

A DPIA must be conducted before using any such technology when it is new or unknown to the data controller. If the result of the DPIA indicates that MDM technology is necessary under specific circumstances, it must still be assessed whether the resulting data processing complies with the principles of proportionality and subsidiarity. Employers must ensure that the data collected as part of this capability...

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Remote location tracking should be conducted for a specific purpose and should not be part of a broader program that allows for the continuous monitoring of workers. Even for the specified purposes, tracking functions must be mitigated. Tracking systems can be designed to record location data without presenting it to the employer. Under such circumstances, location data should only be

available when the device is reported lost or missing.

Workers whose devices are registered in MDM services must also be fully informed about the tracking being carried out and the consequences this has for them.

3.2. On the necessity of conducting and exceeding a DPIA.

The Data Protection Impact Assessment (DPIA) appears as the tool required by the GDPR to ensure compliance with this aspect when processing is considered to be of "high risk," as established in Article 35, paragraph 1 of the GDPR (the emphasis is ours):

"When it is likely that a type of processing, in particular if it uses new technologies, by its nature, scope, context, or purposes, entails a high risk to the rights and freedoms of natural persons, the controller shall carry out, prior to the processing, an assessment of the impact of the processing operations on the protection of personal data..."

This assessment shall be conducted prior to the commencement of processing, but it must be understood as a continuous or periodic assessment, in the sense established by Article 35.11 of the GDPR, which states: "Where necessary, the controller shall review whether the processing is in accordance with the data protection impact assessment, at least when there is a change in the risk posed by the processing operations."

A DPIA must meet the minimum requirements or content outlined in Article 35.7 of the GDPR, which states:

"The assessment shall include at least:

- a) a systematic description of the envisaged processing operations and the purposes of the processing, including, where applicable, the legitimate interest pursued by the controller;
- b) an assessment of the necessity and proportionality of the processing operations in relation to their purpose;
- c) an assessment of the risks to the rights and freedoms of data subjects referred to in paragraph 1, and
- d) the measures envisaged to address the risks, including safeguards, security measures, and mechanisms to ensure the protection of personal data, and to demonstrate compliance with this Regulation, taking into account the rights and legitimate interests of the data subjects and other persons concerned."

In summary, exceeding a DPIA requires that the controller of high-risk processing documents in writing that it surpasses the assessment of suitability, necessity, and proportionality of the processing, and that it manages the specific risks of the processing from the design stage, with the practical application of measures aimed at these risks in such a way as to ensure an acceptable risk threshold throughout the entire lifecycle of the processing, as established in Article 35 of the GDPR.

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Furthermore, it requires prior consultation with the supervisory authority in the event that the data controller has not taken measures to mitigate the risk in accordance with Article 36 of the GDPR.

In this case, there is no doubt that it was mandatory to conduct and complete a prior DPIA, given that it was and is likely that the time control processing implemented by the City Council entails a high risk to the rights and freedoms of public employees using the biometric timekeeping systems and the mobile app timekeeping with geolocation, considering its nature, scope, context, and purposes, as determined by Article 35.1 of the GDPR.

As stated, the processing of biometric personal data and location personal data in the context of monitoring working hours carries significant and particularly relevant risks to the rights and freedoms of individuals, whose processing alone and separately already presents a high probability of risk to the rights and freedoms of employees, warranting a prior and valid DPIA. And in this case, where both types of data were chosen for processing and the high risk that both entail was assumed, the classification of high risk for the processing is undeniable.

Moreover, it should be noted that biometric data aimed at the identification-authentication of individuals—such as in the case of these timekeeping systems for monitoring working hours—has been expressly included in the List of types of data processing that require a data protection impact assessment, published by the AEPD on May 6, 2019, in development of the provision set forth in the fourth paragraph of the aforementioned Article 35 of the GDPR, which provides that supervisory authorities establish and publish lists defining the processing operations that require a DPIA. In the case of the Spanish state, a non-exhaustive list has been published, which determines that “a DPIA will be necessary, in most cases, when such processing meets two or more criteria from the list” (criteria 4 and 5 in the case of biometric data for monitoring working hours or attendance). However, this does not exclude other processing operations that do not meet these criteria, but in light of their nature, scope, context, and purposes, there is a probability that they entail a high risk for the purposes set forth in Article 35.1 of the GDPR, as is the case with the processing of location data necessary to arbitrate the timekeeping system for working hours through a mobile app with geolocation. In this case, the City Council has acknowledged that it did not conduct a DPIA, neither prior to, during, nor after the initiation of the new time control processing implemented in its various phases. And it has not presented any allegations to the initiation agreement that state or prove otherwise. Regarding document 8 submitted by MHP, which provides a Protocol for the Implementation of the TARA system, revised edition as of October 2022, which according to its section 1, is offered to TARA system clients as a guideline, in its section 13 “Suggested Models: 13.4 Impact Assessment by the Data Controller” includes a proposed DPIA, it should be clarified that this does not constitute a valid DPIA, as it has not been prepared and signed by the data controller, who is obligated to carry it out and complete it, and there is also no evidence that this protocol was delivered to the City Council in the present case. It is merely a suggested model by MHP, without validity or legal effects, which also lacks a date or signature from that entity.

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states the following legend: “This document has been prepared by the legal department of MHP, solely for guidance purposes and in accordance with the regulations applicable as of March 4, 2021.”

Therefore, this document cannot be considered for the purpose of fulfilling the obligation set forth in Article 35 of the GDPR.

3.3. On the requirement that the processing is necessary, suitable, and proportional.

Failure to carry out and complete the mandatory DPIA in this case means, among other things, that the City Council initiated the processing operations of the new time control system without previously conducting the assessment of its necessity, suitability, and proportionality as required by Articles 5.1.c) and 35.4.b) of the GDPR.

Thus, Article 5.1.c) of the GDPR establishes the so-called “Principle of data minimization,” which states the following:

“1. Personal data shall be:

a) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

Respect for this principle must be the starting point for the initiation of any processing, and the data controller must consider whether this processing will truly be necessary, suitable, and proportional before commencing it. Therefore, this prior analysis must be conducted before the initiation of any personal data processing; however, when there is a likelihood that the processing entails a high risk (as is the case with biometric data and location data processed in this time control system), there is an obligation to document it within the DPIA, since it must contain “b) an assessment of the necessity and proportionality of the processing operations with respect to their purpose,” in accordance with Article 35.7.b) of the GDPR.

This is confirmed by Recital 39 of the GDPR, which emphasizes the importance of the processing being necessary, stating that “Personal data should only be processed if the purpose of the processing

cannot reasonably be achieved by other means.”

In the same vein, the Article 29 Working Party expresses this in its Opinion 3/2012 on the evolution of biometric technologies.

The obligation to process only “the personal data that are adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed” as provided by the principle of data minimization in Article 5.1.c) of the GDPR, and to assess the necessity and proportionality of the processing in the DPIA according to Article 35.7.b) of the GDPR, must be interpreted in accordance with the established jurisprudence of our Constitutional Court regarding the necessity to ascertain that any restrictive measure of fundamental rights (processing operations that include biometric and geolocation data in this case) exceeds what is referred to as “the triple test of proportionality.”

This implies that, first and foremost, it is necessary to ascertain whether it meets the following three requirements or conditions referred to by the Constitutional Court: “whether such a measure is capable of achieving the proposed objective (suitability test); whether, furthermore, it is necessary, in the sense that there is no other less intrusive measure to achieve that purpose with equal effectiveness (necessity test); and, finally, whether the measure...

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the same is weighed or balanced, as it derives more benefits or advantages for the general interest than harms to other conflicting goods or values (strict proportionality judgment).

The requirement to carry out this triple proportionality assessment prior to processing is specified regarding biometric data in section 72 of the Guidelines 3/2019 on the processing of personal data through video devices, dated 29/01/2020, from the EDPB, which states: “The use of biometric data and, in particular, facial recognition entails significant risks to the rights of data subjects. It is essential that the use of such technologies occurs while duly respecting the principles of legality, necessity, proportionality, and data minimization as established by the GDPR. Although the use of these technologies may be perceived as particularly effective, data controllers must first assess the impact on fundamental rights and freedoms and consider less intrusive means to achieve their legitimate purpose of processing. That is to say, it must be addressed whether this biometric application is something that is truly essential and necessary, or merely 'convenient.'

Regarding location data, Opinion 5/2005 on the use of location data for providing value-added services from the Article 29 Working Party of the EDPB already warned, in 2005, that the processing of such data merely to carry out labor monitoring of working hours is considered 'excessive' for the purposes of the Data Minimization Principle: 'The processing of location data may be justified if it is carried out as part of the control of the transport of persons or goods or the improvement of resource distribution for services in remote locations (for example, real-time operation planning) or when it aims to achieve a security objective concerning the employee themselves or the goods or vehicles under their charge. Conversely, the Group considers that the processing of data is excessive if employees can freely organize their travel plans or when it is carried out solely for the purpose of monitoring an employee's work, provided that it can be done by other means.'

In the present case, there is no assessment of this necessity, suitability, and proportionality, given that the City Council has not carried out the mandatory DPIA. There is also no documented evidence that the City Council thoroughly analyzed prior to processing whether the biometric and geolocation processing operations via mobile were truly suitable, necessary, and proportional to fulfill the purpose of monitoring the working hours of its employees. This is a prerequisite and initial requirement, without which it is not possible to continue with the DPIA, since the processing of personal data that is not necessary, suitable, and proportional is prohibited by the GDPR.

Moreover, in addition to not having carried out this triple prior proportionality assessment, it should be noted that there is no evidence in the proceedings that the biometric timekeeping systems and geolocation via an APP on the mobile were necessary to fulfill the purpose of monitoring working hours for which they were implemented.

This is so because it is established that there were and could be used other less intrusive timekeeping systems that allowed achieving the intended purpose with lower risks for the data subjects, such as the timekeeping system via the internet through a web connection that is already operational (provided that it does not collect location data, but rather the personal data indicated).

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in the contract for the processing assignment); or other possible methods such as magnetic cards or signature sheets that had already been used previously by the City Council and are easily implementable by it.

It does not seem, therefore, necessary or proportional, given the relationship between advantages and disadvantages, to use time tracking systems for the workday that are based on the processing of biometric personal data and geolocation, when there are other equally effective alternative methods for time tracking, making it difficult to surpass this evaluation or triple test of proportionality in the DPIA. In conclusion, in accordance with the established facts, following the investigative and instructional actions carried out, it is considered that the facts presented could violate what is established in Article 35 of the GDPR, for not conducting and surpassing the City Council a prior DPIA before the implementation of the time control processing that was carried out.

IV. Qualification and classification of the infringement of Article 35 of the GDPR.

As stated in the Legal Basis III, it is considered that the facts presented violate what is established in Article 35 of the GDPR, which could imply the commission of an administrative infringement classified in Article 83.4.a) of the GDPR which states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) The obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43.”

For the purposes of prescription, the LOPDGDD establishes in its Article 73.t) that: “Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall prescribe in two years the infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

t) The processing of personal data without having carried out the impact assessment of the processing operations on the protection of personal data in cases where it is required.”

V. On the prohibition of processing special category data under Article 9 of the GDPR

5.1. Biometric data as special category data: general prohibition and exceptions for processing.

The GDPR defines in Art. 4.14 biometric data as “personal data obtained through a specific technical processing, related to the physical, physiological, or behavioral characteristics of a natural person that allow or confirm the unique identification of that person, such as facial images or fingerprint data.”

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According to the definition provided by Article 4.14 of the GDPR, biometric data processed by these systems will become personal data as long as the purpose of the processing is the identification or authentication of a person, as intended in Article 4.1 of the GDPR.

There is no doubt that the minutiae (fingerprints) and the facial pattern necessary for the biometric registration provided by the City Council are personal biometric data, since the purpose of the implemented system is to determine the identity, directly or indirectly, of the municipal employees of the claimed City Council, in order to record their entry and exit from the workplace, and to verify the time and date of the beginning and end of their workday. Since the process assigns an identifier (the biometric template obtained by collecting the fingerprint samples or facial recognition of the interested parties) that allows for the individualization of a person and distinguishes them from others, through “elements inherent to physical, physiological, genetic, and psychological identity.”

It should also be considered that -unlike what occurred under the regime prior to the GDPR- this type

of biometric data is classified as special category personal data in Article 9, the processing of which is generally prohibited, unless one of the exceptions provided for in Article 9.2 of the GDPR applies. This does not exempt the requirement that there must always be a lawful basis as provided in Article 6 of the same, among many other requirements and principles that must be complied with by anyone who decides to opt for this type of processing.

According to Article 9.1 of the GDPR, the processing of biometric data is prohibited when it consists of: “biometric data aimed at uniquely identifying a natural person.”

In the specific case of facial recognition techniques (FRS), the general registration system implemented by the City Council, there is no doubt that the “facial pattern” extracted from each person allows for unique identification. The use of the face in FRS is capable of validating identity, containing unique information about natural persons. The software algorithm, based on the biometric sample (photograph of the person's face), extracts the biometric characteristics of a person's face through a photograph, reduces and transforms that sample into labels or numbers, constituting a mathematical representation of the original biometric characteristic, which is the biometric template (facial pattern or vector). The template is stored for comparison in the final phase in which, with the biometric sample - in the reader - and with the previously recorded template, it uniquely identifies the user each time they enter by placing their face in front of the reader, which is why it is considered that the data falls within the scope of special data, due to being a unique identification.

In this regard, we must note that, since biometric data is special category data, the GDPR imposes an additional obligation on the data controller, who will also be required to verify and demonstrate that one of the exceptions provided for in Article 9.2 of the GDPR or other specific legislation applies before initiating the processing of any biometric data, which applies to the present case, in which biometric registration was foreseen as the general method of registration based on the facial recognition of employees.

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It should be noted that, while the processing of biometric data is generally prohibited, any exception to this prohibition must be subject to restrictive interpretation, as deduced from recitals 51 and 52 of the GDPR. In this context, the exceptions that could potentially allow for the lifting of the general prohibition on processing biometric data aimed at identifying or verifying the identity of natural persons are those provided for in Article 9.2 of the GDPR, with the following literal wording, which must be interpreted restrictively, always in favor of protecting the rights and freedoms of citizens in case of doubt:

“2. Paragraph 1 shall not apply when one of the following circumstances applies:

- a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except where Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;
- b) the processing is necessary for compliance with a legal obligation to which the controller is subject or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) the processing is necessary to protect the vital interests of the data subject or of another natural person, in the event that the data subject is not physically or legally able to give consent;
- d) the processing is carried out in the course of legitimate activities with appropriate safeguards by a foundation, association, or any other not-for-profit body with a political, philosophical, religious, or trade union aim, provided that the processing relates solely to the members or former members of the body or to persons who have regular contact with it in connection with its purposes and that the personal data are not disclosed outside that body without the consent of the data subjects;
- e) the processing concerns personal data which the data subject has manifestly made public;
- f) the processing is necessary for the establishment, exercise, or defense of legal claims or whenever courts are acting in their judicial capacity;

- g) the processing is necessary for reasons of substantial public interest, on the basis of Union or Member State law, which must be proportionate to the aim pursued, respect the essence of the right to data protection, and provide for suitable and specific measures to safeguard the fundamental rights and interests of the data subject;
- h) the processing is necessary for purposes of preventive or occupational medicine, for the assessment of the working capacity of the employee, medical diagnosis, the provision of health or social care or treatment, or management of health or social care systems and services, on the basis of Union or Member State law or pursuant to a contract with a health professional and without prejudice to the conditions and safeguards referred to in paragraph 3;
- i) the processing is necessary for reasons of public interest in the area of public health, such as protecting against serious cross-border threats to health, or ensuring high standards of quality and safety of health care and of medicinal products or medical devices, on the basis of Union or Member State law which provides for suitable and specific measures to safeguard the rights and freedoms of the data subject, in particular the secrecy of professional communications.

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- j) the processing is necessary for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, based on Union or Member State law, which must be proportional to the objective pursued, essentially respect the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject.”

Therefore, in addition to not having carried out a valid DPIA, if the controller does not demonstrate that its processing falls within any of these exceptions, it will incur a violation of Article 9 of the GDPR by initiating prohibited processing.

5.2.

Analysis of the present case.

In the present case, it is established in the instruction that the City Council has processed biometric data, implementing the fingerprint system since 2015, and the facial recognition system as a common method of recording the working hours of its municipal employees since 11/2/21.

According to the above, for these biometric timekeeping systems to be lawful, it is necessary that an exception to the general prohibition on processing special category data provided for in Article 9.1 of the GDPR applies, in addition to a lawful basis under Article 6 of the GDPR. It is not disputed that the City Council has a lawful basis provided for in Article 6.1 of the GDPR. However, this does not exempt it from the additional obligation to have an exception provided for in Article 9 of the GDPR when choosing a time control method that processes biometric data.

In this regard, the City Council provides the PRODAT Report, which it claims was prepared by the Data Protection Officer of the City Council on 11/24/20, which is not substantiated, as it appears without a signature, indicating that “timekeeping through facial recognition involves the processing of biometric data, which does not have the consideration of special category data as it is a technical processing of biometric verification/authentication (one-to-one), which we must understand as proportional, in light of the hygiene measures that must be applied due to the health situation we are experiencing due to the COVID-19 pandemic.”

The City Council maintains that this criterion is the one followed by this Agency in the Legal Advisory Opinion of Agency No. 36/2020, and the previous “Guide on Data Protection in Labor Relations” from May 2021. However, it should be clarified that this interpretation has been superseded and replaced by the new criterion established in Guidelines 05/2022 of the European Data Protection Committee (EDPC), the highest European authority in this matter, regarding the use of facial recognition in the context of law enforcement on April 26, 2023.

The new Guidelines 05/2022 determine, in their section 12, that the concept of biometric data encompasses both “authentication” and “identification,” and although they are distinct concepts, in

both procedures data aimed at identifying a natural person is processed, so both are included in the concept of “data processing,” and more specifically, they are processing of personal data of special categories.

It is undisputed that biometric data is of a special category, and there is no evidence that any of the exceptions provided for in Article 9.2 apply.

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of the GDPR that allows for the processing of biometric data as a means of monitoring and controlling the legal obligation to oversee and manage the working hours of municipal employees.

The possibility of resorting in this case to the exception of Article 9.2.g) (processing necessary for the satisfaction of a public interest) has been ruled out, in accordance with the criteria already previously expressed by this Agency, to which the data processor refers. The concurrence of the exception of Article 9.2.b) of the GDPR must also be ruled out, the application of which is proposed in the Implementation Protocol provided as Document 8 of the submission made by the data processor.

The exception of Article 9.2.b) of the GDPR refers to: “when the processing is necessary for compliance with obligations and the exercise of specific rights of the data controller or the data subject in the field of labor law and social security and protection, to the extent authorized by the law of the Union of the Member States.”

As this Agency has already stated in the Guide on presence control treatments using biometric systems, in the case of the Spanish state, this reference must be understood as requiring a legal reservation, for the purposes provided in Article 53 of the Constitution. According to the doctrine of the Constitutional Court, in rulings such as STC 76/2019, of May 22, or STC 292/2000, of November 30, the legal reservation implies that there must be a norm with the rank of law that expressly enables the limitation of the fundamental right in question.

Applying this doctrine to the cases of limitation of the fundamental right to the protection of personal data, and to the present case, the application of the exception of Article 9.2.b) of the GDPR to process biometric data of employees to identify-authenticate the identity of a person for the purpose of controlling compliance with their working hours would require that there be a norm with the rank of law that expressly enables such control to be carried out through methods that involve the processing of biometric data.

In this regard, the aforementioned Guide concludes that: “in the current Spanish legal regulations, there is no sufficiently specific authorization to consider the processing of biometric data for the purpose of time control of working hours to be enabled, neither for labor personnel, since Articles 20.3 and 34.9 of the Consolidated Text of the Workers' Statute (ET) do not contain such authorization, nor for personnel subject to an administrative legal relationship, as the provision related to compliance with working hours referred to in Article 54.2 of the Consolidated Text approving the Basic Statute of Public Employees (TREBEP) does not constitute a necessary enabling provision.”

In this case, regarding municipal employees, it should be noted that the provision of Article 21.1.h) of the Local Government Basic Law 7/85, of April 2, to which the Protocol of the data processor refers, does not even expressly foresee the obligation to control working hours, as it merely attributes the superior management of municipal personnel to the Mayor.

No objections have been presented to the initiation agreement, nor has the concurrence of any of the exceptions provided in Article 9.2 of the GDPR that would allow for the lifting of the general prohibition on the processing of biometric data been accredited.

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It is confirmed that by implementing the biometric timekeeping system, the City Council has also

incurred an administrative infringement of Article 9 of the GDPR.

VI. Qualification and classification of the infringement of Article 9 of the GDPR

As stated in Legal Basis V, in accordance with the evidence currently available, it is confirmed that the facts presented violate the provisions established in Article 9 of the GDPR, which could constitute the commission of an administrative infringement classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

“a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

For the purposes of prescription, the LOPDGDD establishes in its Article 72.e):

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

“e) The processing of personal data of the categories referred to in Article 9 of Regulation (EU) 2016/679, without any of the circumstances provided for in that provision and in Article 9 of this organic law.”

VII. On the obligation of participation of the DPO provided for in Article 38 of the GDPR.

Another significant novelty that makes the GDPR a paradigm shift in data protection is its configuration as a modernized framework based on accountability for the protection of personal data in Europe, where Data Protection Officers (DPOs) are the central element, facilitating compliance with the provisions of the GDPR by the data controller and processor.

Around this idea, Articles 37 to 39 of the GDPR regulate the cases in which their designation is mandatory, the possibility of voluntarily appointing them, obligations such as publishing their contact details and communicating them to the supervisory authority, as well as their position and functions within the organization for which they are designated.

Specifically, and regarding the present file, it is pertinent to refer to what is established in Article 38 of the GDPR, concerning the “Position of the Data Protection Officer,” which states the following:

1. The data controller and the processor shall ensure that the Data Protection Officer is involved appropriately and in a timely manner in all issues related to the protection of personal data.

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2. The controller and the processor shall support the data protection officer in the performance of the functions mentioned in Article 39, providing the necessary resources for the performance of these functions and access to personal data and processing operations, and for the maintenance of their specialized knowledge.

3. The controller and the processor shall ensure that the data protection officer does not receive any instructions regarding the performance of these functions. They shall not be dismissed or sanctioned by the controller or the processor for performing their functions. The data protection officer shall report directly to the highest hierarchical level of the controller or processor.

4. Data subjects may contact the data protection officer regarding all matters related to the processing of their personal data and the exercise of their rights under this Regulation.

5. The data protection officer shall be obliged to maintain secrecy or confidentiality regarding the performance of their functions, in accordance with Union law or the laws of the Member States.

6. The data protection officer may perform other functions and tasks. The controller or processor shall ensure that such functions and tasks do not lead to a conflict of interest.

In this regard, the W243 Guidelines on Data Protection Officers from the Article 29 Working Party, approved on December 13, 2016, and revised on April 5, 2017, emphasize the importance of the obligation that the controller has to ensure this participation, consulting the DPO of their organization before making decisions that affect data protection in a timely and appropriate manner for each personal data processing they intend to carry out.

“3.1. Participation of the DPO in all matters related to the protection of personal data. Article 38 of the GDPR establishes that the controller and the processor shall ensure that the DPO ‘is involved appropriately and in a timely manner in all issues related to the protection of personal data.’

It is essential that the DPO, or their team, participate from the earliest possible stage in all matters related to data protection. Regarding data protection impact assessments, the GDPR expressly provides for the early involvement of the DPO and specifies that the controller shall seek the advice of the DPO when conducting such an impact assessment. Ensuring that the DPO is informed and consulted from the outset will facilitate compliance with the GDPR, promote a privacy-by-design approach, and therefore should be a standard procedure in the governance of the organization. Furthermore, it is important that the DPO is considered a point of contact within the organization and is part of the relevant working groups that...

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are involved in data processing activities within the organization. Consequently, the organization must ensure, for example, that:

- The DPO is regularly invited to participate in meetings with senior and middle management.
- It is recommended that the DPO is present when decisions are made that have implications for data protection. All relevant information must be communicated to the DPO in a timely manner so that they can provide appropriate advice.
- The DPO's opinion is always duly taken into account. In case of disagreement, the Working Group recommends, as good practice, documenting the reasons for not following the DPO's advice.
- The DPO is promptly consulted once a data security breach or any other incident has occurred. When relevant, the data controller or processor may develop guidelines or programs on data protection that determine when the DPO should be consulted.”

It is recorded in the file that the DPO of the City Council – whose appointment is, in this case, mandatory according to the provisions of Article 37.1.a) of the GDPR – did not adequately and timely participate in all matters related to the personal data protection raised by the new time control system TARA implemented by the City Council. That is, there is no record of the DPO's participation, nor of the prior consultation of the City Council in any of the phases of implementation of this processing, neither before, during, nor after the initiation of any of the 3 processing operations carried out to control the working hours of its municipal employees starting from 2-11-21.

When questioned about this issue by the inspector during the investigation proceedings, the City Council clearly acknowledges that: “No report was requested from the Data Protection Delegate prior to the commencement of the aforementioned processing, although there is a report dated November 24, 2020, regarding suitability concerning the possibility of implementing labor timekeeping through facial recognition in relation to the hygiene measures that must be applied due to the health situation caused by the COVID-19 pandemic when it comes to biometric verification/authentication (one-to-one).”

The aforementioned PRODAT Report of 24/11/2020 provided by the City Council does not contain a signature footer nor does it identify the issuing person or body. It confines its analysis to the following: “Having been consulted by the M.I. CITY COUNCIL OF TELDE regarding the suitability of implementing labor timekeeping through facial recognition, it must be analyzed whether the implementation of the facial recognition system complies with the current state regulations on the

protection of personal data.”

By providing this report, in which the issuing body or person cannot be identified, it cannot be understood as proven that this Report was issued by the DPO of the City Council, as unsigned documents lack legal validity.

But even in the event that the aforementioned report had been issued by the DPO of the City Council, it is true that this report, by itself, would not prove either that

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the participation of the DPO was "adequate and prior to the processing" that was ultimately implemented by the City Council.

This is so, given that the aforementioned PRODAT Report: (i) did not analyze as a whole all the processing operations that were ultimately carried out (which expanded beyond facial recognition), (ii) nor did it assess all the data protection issues raised by such processing, related to compliance with all the principles and requirements demanded by the GDPR to be able to implement the new TARA system for time control established in the aforementioned municipal regulations (limiting itself to analyzing the issue that was consulted in 2020, regarding the suitability of facial recognition). Since all these are considered as "issues regarding personal data protection" in which their participation is mandatory.

Consequently, in accordance with the evidence available in this initiation agreement of the sanctioning procedure, and no allegations having been made in this regard nor any evidence provided that proves the participation of the DPO during the instruction phase of this procedure, it is considered that the known facts constitute a violation of Article 38.1 of the GDPR, which assigns to the data controller the duty to ensure that the DPO participates adequately and in a timely manner in all matters related to personal data protection.

VIII. Qualification and classification of the infringement of Article 38 of the GDPR.

The violation of Article 38 of the GDPR is classified in Article 83.4.a) of the aforementioned GDPR in the following terms:

“4. Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor pursuant to Articles 8, 11, 25 to 39, 42, and 43.”

For its part, the LOPDGDD in its Article 73, for the purposes of prescription, qualifies as “Serious infringements:

According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall prescribe after two years:

w) Failing to enable the effective participation of the data protection officer in all matters related to personal data protection, not supporting him or interfering with the performance of his duties.”

IX. Proposal for sanction

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Article 83 "General conditions for the imposition of administrative fines" of the GDPR in its paragraph 7 establishes:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Likewise, Article 77 "Regime applicable to certain categories of controllers or processors" of the LOPDGDD provides that:

"1. The regime established in this article shall apply to the processing for which the following are responsible or processors:

- a) The constitutional bodies or those with constitutional relevance and the institutions of the autonomous communities analogous to them.
- b) The judicial bodies.
- c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.
- d) The public bodies and entities of public law linked to or dependent on the Public Administrations.
- e) The independent administrative authorities.
- f) The Bank of Spain.
- g) The public law corporations when the purposes of the processing relate to the exercise of public law powers.
- h) The public sector foundations.
- i) The Public Universities.
- j) The consortiums.
- k) The parliamentary groups of the General Courts and the autonomous Legislative Assemblies, as well as the political groups of the Local Corporations.

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016."

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where appropriate, and to the affected parties who had the status of interested parties, where appropriate.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regime that is applicable.

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Furthermore, when the violations are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for the treatment that have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible position and will order publication in the Official State Bulletin or the corresponding regional bulletin.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article will be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

If the data controller belongs to the local administration, and if the commission of the aforementioned violations is confirmed, it would be appropriate to issue a resolution declaring the violation of Article 35 of the GDPR and Article 9 of the GDPR by the City Council of Telde.

X. Adoption of corrective measures

If the commission of the 3 violations attributed in this procedure is confirmed, it is also appropriate to impose on the responsible party the adoption of adequate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor

to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...".

In this regard, such measures must consist of carrying out and demonstrating to this Agency within 7 months compliance with the following corrective measures concerning the compliance with Articles 9 and 35 of the GDPR:

- The City Council must carry out and complete a Data Protection Impact Assessment (DPIA), with the appropriate involvement of the Data Protection Officer (DPO), which includes a prior risk analysis and the evaluation of the triple test of suitability, necessity, and proportionality of each of the processing operations (workday timekeeping systems) it intends to implement, determine whether any of the exceptions of Article 9.2 of the GDPR apply, as well as the appropriate protective measures and the other obligations required by personal data protection regulations.

In the event that any of the processing operations specified in the timekeeping systems implemented by the City Council do not pass the aforementioned triple test, and/or the exception allowing the processing of biometric data does not apply, or it is not possible to comply with any of the obligations provided for in the data protection regulations, the City Council will not be able to carry out the processing operation(s) in question, and must demonstrate this circumstance to this Agency.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered as a violation.

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administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which may motivate such conduct to initiate further administrative sanctioning procedures.

XI.

Elevation of provisional measure to definitive. Prohibition of processing.

Article 58.2 of the GDPR provides as follows:

"Each supervisory authority shall have all of the following corrective powers indicated below:

- d) to order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame;"

- f) to impose a temporary or definitive limitation on processing, including its prohibition; [...]"

- i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;"

Regarding the temporary or definitive limitation of processing, reference should be made to Article 69 of the LPACAP, which states:

"1. During the conduct of preliminary investigation actions or the initiation of a procedure for the exercise of sanctioning authority, the Spanish Data Protection Agency may reasonably agree to the necessary and proportionate provisional measures to safeguard the fundamental right to data protection and, in particular, those provided for in Article 66.1 of Regulation (EU) 2016/679, the precautionary blocking of data and the immediate obligation to comply with the requested right.

2. In cases where the Spanish Data Protection Agency considers that the continuation of the processing of personal data, its communication or international transfer would cause serious harm to the right to personal data protection, it may order the controllers or processors to block the data and cease its processing and, in the event of non-compliance with these mandates, proceed to immobilize it."

Article 56 of the LPACAP states in its fifth paragraph that:

"5. Provisional measures may be lifted or modified during the processing of the procedure, either ex officio or at the request of a party, by virtue of unforeseen circumstances or circumstances that could not be taken into account at the time of their adoption. In any case, they shall cease to have effect when the administrative resolution that concludes the corresponding procedure takes effect."

In the present procedure, the Agreement to Initiate the sanctioning procedure ordered the following: "TO ORDER as a provisional measure the CITY COUNCIL OF TELDE, with NIF P3502600D, in accordance with the provisions of Article 69 of the LOPDGDD and Article 56 of the LPACAP, the temporary suspension of all processing of personal data corresponding to the biometric timekeeping systems—specifically from C/ Jorge Juan, 6

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referring to the facial recognition system - and time tracking through an APP on the mobile phone with geolocation of its employees as a method of controlling compliance with the working hours of its employees.

The provisional measure must be carried out within ten working days, counted from the notification of this agreement to open the procedure, and will remain in effect until its final resolution, which must confirm, modify, or lift it, without prejudice to the provisions of Article 56.5 of the LPACAP, and the final resolution may agree to the definitive limitation or prohibition of such processing operations in accordance with the provisions of Articles 58 of the GDPR and 69 of the LOPDGDD. To this end, it must justify to this Spanish Agency for Data Protection the attention to this requirement.

However, as of today, the City Council of Telde has not submitted allegations to the initiation agreement nor communicated to this Agency that it has complied with the provisional suspension measure of the biometric data processing and geolocation used for tracking the working hours of its employees, so it is unknown whether this system has been provisionally suspended, as ordered in the initiation agreement of the sanctioning procedure, or if it has been definitively suspended.

It is estimated that the same risks that motivated the provisional suspension or limitation of processing in the initiation agreement undoubtedly persist today, as the continuation of the biometric data processing and geolocation of employees derived from the time tracking systems implemented by the City Council could result in very serious and irreparable harm to the rights and freedoms of users accessing the stadium using the implanted biometric system.

Given the circumstances, it is understood that the prohibition of processing, as a corrective measure granted in Article 58.2.f) of the GDPR to the Spanish Agency for Data Protection, is the only measure that can be adopted to safeguard the Fundamental Right to Data Protection, being, moreover, the least harmful, burdensome, proportional, and effective, as well as the most proportional and effective for the accused.

From these premises and in order to guarantee the rights and freedoms of the affected parties, it is deemed appropriate to confirm the provisional suspension ordered in the initiation agreement and to prohibit, as a corrective measure, the processing of personal data through the processing operations that the City Council qualifies as "biometric time tracking system" (fingerprint/facial recognition) and "time tracking system through APP on the mobile device with geolocation (whether on the employee's personal device or on a corporate one), proceeding to cease both processing operations.

This measure would not prevent the accused from continuing to correctly and legally control the working hours of its employees with the other systems it is already using, given that it has a third processing operation called "internet time tracking system, which allows web connection," and it can easily implement other less intrusive methods of time control (signature sheets, magnetic cards, etc.) that have already been used in the past, so the suspension of the biometric and geolocation time tracking systems does not entail a cost or effort.

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disproportionate nor does it prevent it from continuing to fulfill its legal obligation to monitor and control compliance with the working hours of its employees.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the

graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that AYUNTAMIENTO DE TELDE, with NIF P3502600D, has violated the provisions of Article 38 of the GDPR, Article 9 of the GDPR, and Article 35 of the GDPR, having committed 3 infractions classified under Article 83.4.a) of the GDPR and Article 83.5.a) of the GDPR.

SECOND: To confirm the provisional measure imposed in the initiation agreement of the present sanctioning file, and to prohibit AYUNTAMIENTO DE TELDE, as a corrective measure provided for in Article 58.2.f) of the GDPR, from any processing of personal data corresponding to biometric timekeeping systems—and especially those related to the facial recognition system—and timekeeping through a mobile APP with geolocation of its employees as a method of controlling compliance with the working hours of its employees. For these purposes, it must prove within ten working days from the date this resolution becomes firm and enforceable before this Spanish Agency for Data Protection that it has ceased these two processing operations.

THIRD: TO ORDER AYUNTAMIENTO DE TELDE, with NIF P3502600D, that pursuant to Article 58.2.d) of the GDPR, within 7 months from the date this resolution becomes firm and enforceable, it must prove that it has complied with the following corrective measures regarding compliance with Articles 9 and 35 of the GDPR:

- The City Council must carry out and pass a DPIA, with the appropriate participation of the DPO, which contains a prior risk analysis, and the evaluation of the triple test of suitability, necessity, and proportionality of each of the processing operations (working hours timekeeping systems) it intends to implement, determine whether any of the exceptions in Article 9.2 of the GDPR apply, as well as the appropriate protective measures, and the rest of the obligations required by personal data protection regulations.

- In the event that any of the processing operations that comprise the timekeeping systems implemented by the City Council do not pass the aforementioned triple test, and/or the exception that allows the processing of biometric data does not apply, or it is not possible to comply with any of the obligations provided for in the data protection regulations, the City Council may not carry out the processing operation(s) in question, and must prove this circumstance before this Agency.

FOURTH: NOTIFY this resolution to AYUNTAMIENTO DE TELDE.

FIFTH: COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in

Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

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